

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 13, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Richard Johnson and Pete Laybourn. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Roybal moved to approve Consent Agenda items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 23, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Case moved to approve payment of vouchers as presented, seconded by Dr. Rinne. Mr. Case moved to divide the question to allow for separate action on the voucher payable to the Wyoming Association of Municipalities in the amount of \$46,155.88 for Fiscal Year 2019 WAM membership dues as a result of recent comments published by the media regarding the merits of the City of Cheyenne’s membership status, seconded by Mr. Cook. Mayor Orr noted the motion was not debatable. Motion to divide the question carried. Voting “yes” – all members of the governing body present in Council Chambers. Due to recent information on the membership dues topic received by City Council members, Mr. Case moved to postpone action on the voucher payable to the Wyoming Association of Municipalities to August 27, 2018, seconded by Mr. Luna. Motion to postpone carried. Voting “yes” – all members of the governing body present in Council Chambers. Motion to approve payment of remaining vouchers, excluding the voucher payable to the Wyoming Association of Municipalities, carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

ORDINANCE – 2nd READING – Repealing Section 9.12.080, Electric Fences Prohibited, of Chapter 9.12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal reported there was no recommendation from the Public Services Committee on the item due to the lack of a second to the motion. Mr. Roybal moved to approve on second reading, seconded by Mr. Luna. Comment was made in support of approving the ordinance on second reading to allow for continuing discussion. Motion carried.

Voting “yes” – all members of the governing body present with the exception of Mr. Cook and Mr. Shanor voting “no”.

[CA] RESOLUTION – Acknowledging the receipt of the feasibility study for the Cheyenne Municipal Courts, and authorizing the City Attorney to expediently pursue all actions required to complete the purchase of the real property located at 308 West 17th Street, in the City of Cheyenne, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5945)

[CA] RESOLUTION – Authorizing submission of a Federal Mineral Royalty Capital Construction Account grant application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to purchase fifty dual band portable radios, twenty dual band mobile radios and the necessary accessories for Cheyenne Fire and Rescue – referred to Finance Committee. (SPONSOR – MR. WHITE)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County for Juvenile Probation Services. (revenue to City). Motion (per Consent Agenda) carried. (#6891)

[CA] Professional Services Agreement between the City of Cheyenne, Public Works Department, and Noel Griffith Jr. & Associates Architects, Cheyenne, for analytical and design engineering for the construction of a new Municipal Court. Motion (per Consent Agenda) carried (amount not to exceed \$697,500.00). (#6892)

[CA] Rental Agreement between the City of Cheyenne, Community Recreation and Events Department, and Cheyenne Capitals Youth Hockey Association for use of the Ice and Events Center (revenue to City) – referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Leslie Burch, for crime victim assistance services (Wyoming Division of Victim Services grant) – referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Brenda Johnson, for crime victim assistance services (Wyoming Division of Victim Services grant) – referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Jessica A. Fritz, for crime victim assistance services (Wyoming Division of Victim Services grant) – referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, Cheyenne Police Department, and Desiree M. Vigil, for crime victim assistance services (Wyoming Division of Victim Services grant) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, and the Wyoming Department of Transportation for a Wyoming Rural Public Transportation grant to assist in providing local match for operating

funds for the Cheyenne Transit Program for FY 2019 (WYDOT grant) – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6743 between the City of Cheyenne and River Oaks Communications Corporation for drafting and negotiation of Charter Communications Cable Franchise renewal and CenturyLink Cable Television franchise agreements to extend the completion date – referred to Finance Committee.

[CA] Consideration of Bid #E-2-19 for furnishing two new 2019 transfer trailers for the City of Cheyenne Sanitation Division (Solid Waste Management fund). Motion (per Consent Agenda) carried (accepted bid from Ameri-Tech Equipment, Casper, WY, in an amount not to exceed \$186,254.00).

[CA] Consideration of Bid #E-3-19 for furnishing two new 2018-2019 John Deere Pro-Gators for the City of Cheyenne, Cemetery Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-4-19 for a contract between the City of Cheyenne, Community Recreation and Events Department, and Anthony Carr & Son Painting, for the Historic Union Pacific Depot Restoration: Windows Project (grants and City funds) – referred to Finance Committee.

Restaurant liquor license application filed with the City Clerk's office for Central Cafe, LLC d/b/a Central Cafe, 3920 Central Avenue, Cheyenne, WY. Dr. Rinne declared a conflict of interest and vacated Council Chambers. Mr. White moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Dr. Rinne returned to Council Chambers.

Announcement was made of a Public Hearing to be held Monday, August 27, 2018 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the S½ E½, Tract 1, Skyline Tracts, and that portion of Brimmer Road right-of-way adjacent to said S½ E½ of Tract 1, Laramie County, Wyoming, situated in SE¼ SE¼, Section 18, Township 14 North, Range 66 West of the 6th P.M., County of Laramie, State of Wyoming (located northwest of the intersection of Storey Boulevard and Powderhouse Road).

Under other business:

Earl Janack shared his observations and concerns regarding the 2017 change to City Code provisions involving street musicians and the requirement to obtain the consent of the owner or manager of the premises in front of the place where a street musician proposes to perform. Mr. Janack commented on difficulties and scenarios he has encountered as a street performer; difficulty in obtaining the required consent from owners or managers; available locations, and activities he believes should require a City noise permit. Mayor Orr suggested review of the City Code could be conducted by the governing body with a separate meeting or response to Mr. Janack.

Joe Dougherty expressed his observation that items relating to the new Municipal Court building acted upon earlier in the meeting as Consent Agenda items was inappropriate as it did not afford public comment on the items involving \$9 million in expenditure of public funds. Following comments and upon inquiry, Mr. Dougherty advised he had spoken with some members of the governing body about his concerns involving the new Municipal Court building site and historic value of the property but had not specifically requested a City Council member to request removal of the items from the Consent Agenda. Also under other business, it was noted that requests to remove an eligible item from the Consent Agenda can always be made to City Council members, and that opportunity for public input on the Municipal Court building location topic had been made available for the past several months.

Introductions of Scott Roberts, new planner with the Planning and Development Department, and Joe Chenchar, new Assistant City Attorney with the City Attorney Department, were made.

Mr. White expressed appreciation to staff for their work on behalf of the City during this year's Cheyenne Frontier Days celebration.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:30 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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